



## Notification of the Food and Drug Administration

Re: Document or Certificate of Food Production System Standards for Import of Food Products

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Since the Ministry of Public Health had issued two Notifications of the Ministry of Public Health including Notification of the Ministry of Public Health Number 386, B.E. 2560 (2017) Re: Prescription of production process, equipment and utensil for production and storage of some fresh fruits or vegetables and labeling and Notification of the Ministry of Public Health (Number 420) of B.E. 2563 Issued by the Virtue of the Food Act of B.E. 2522 Title: Food Production Processes, Processing Equipment/ Utensils and Storage Practices, it requires food importers for sale under the applicable scope shall provide documents or certificates of food production system standards that are equivalent to or not lower than the criteria specified in the list attached to the Notifications. Therefore, to provide clarity in practice, the Food and Drug Administration shall provide the guidelines for practice as follows:

Clause 1 Shall be repealed (1) Notification of the Food and Drug Administration regarding Certificate of food premises for the importation of food, dated 19th April B.E 2564 (2021).

Clause 2 Documents or certificates of food production system standards for import of food products shall specify food production system standards that are equivalent to or not lower than the criteria specified in Notification of the Ministry of Public Health and the scope of certification shall covers the type of the imported food, depending on its relevant cases, as follows:

(1) Notification of the Ministry of Public Health Number 386, B.E. 2560 (2017) Re: Prescription of production process, equipment and utensil for production and storage of some fresh fruits or vegetables and labeling. There are examples of food production system standards recognized by the Food and Drug Administration published on the website.

<https://moph.cc/GMPpackinghouse>

(2) Notification of the Ministry of Public Health (Number 420) of B.E. 2563 Issued by the Virtue of the Food Act of B.E. 2522 Title: Food Production Processes, Processing Equipment/ Utensils and Storage Practices. There are examples of food production system standards recognized by the Food and Drug Administration as published on the website. <https://moph.cc/GMP-420EN>

Clause 3 Agencies that issue documents or certificates of food production system standards that are equivalent to or not lower than the criteria set forth in Notification of the Ministry of Public Health Number 386, B.E. 2560 (2017) Re: Prescription of production process, equipment and utensil for production and storage of some fresh fruits or vegetables and labeling according to Clause 2 (1) shall be one of the following agencies:

- (1) Responsible competent authority at the country of origin
- (2) Other agencies recognized by responsible competent authority at the country of origin
- (3) Certification body (CB) that has been accredited by accreditation body (AB) that is a member and has been recognized by the International Accreditation Forum (IAF).

For agencies who issue documents or certificates of production system standards that are equivalent to or not lower than the criteria specified in Notification of the Ministry of Public Health (Number 420) of B.E. 2563 Issued by the Virtue of the Food Act of B.E. 2522 Title: Food Production Processes, Processing Equipment/ Utensils and Storage Practices in according with Clause 2 (2) shall be an organization that has creditability, such as the agency in paragraph one or an agency that has an inspection and certification system that complies with the Guidelines for the Design, Operation, Assessment and Accreditation of Food Import and Export Inspection and Certification Systems (CAC/GL 26-1997).

Clause 4 Documents or certificates according to Clause 2 shall be original. In cases where the original cannot be used, a copy of the document or certificate can be used in which the copy or content shall be certified by the agency that issued the certificate or by the embassy of the origin country in Thailand or by government agencies or a person certified by the state, such as a Notary Public.

In case the content on a copy of the document or certificate can be verified from the database on the website of the standard-owning agency, Accreditation Body (AB), Certification Body (CB), or the International Accreditation Forum (IAF), the certified of copy or content is not required in which the verified content shall be at least consists of:

- (1) Name of the food production system standard
- (2) Name and address of the certified food production site
- (3) Certification scope
- (4) Certification date or expiration date or certification status
- (5) Agency issuing the certificate (CB) or Accreditation Body (AB) or standard-owning agency

In the case where documents or certificates of food production system standards for import of food products are electronic data or documents or certificates signed with an electronic signature can proceed in accordance with the law on electronic transactions.

In case that documents or certificates are in other languages, the translation either in Thai or English shall be attached and the translation shall be certified from one of the following agencies or persons:

- (1) The Embassy or Thai consulate in the country of origin,
- (2) Embassy or consulate of the origin country located in Thailand,
- (3) Persons or agencies that operate the business of translating documents in accordance with international standards and possess a certificate,
- (4) Thai people who have completed a degree not lower than a bachelor's degree in a program in which the language shown in the document is used as the language of instruction,
- (5) Instructor in higher education institutions and teaching the language appeared in that document in such educational institution

Clause 5 Documents or certificates as prescribed in Clause 2 shall specify the validity of the document or certificate, unless there is evidence from the agency certified such food premise that the document or certificate still meets the criteria in Clause 2.

If the agency that certifies the food premises does not specify the expiry date of the document or certificate, the validity of the document or certificate shall be no more than one year from the date of issuance of the document or the effective date of certification.

Announced on Date 27th November B.E. 2567

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Secretary-General of Food and Drug Administration